

**BEFORE THE
FEDERAL MARITIME COMMISSION**

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV,

— vs. —

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

INFORMAL DOCKET NO.: 1953(I)

KAIRAT NURGAZINOV,

— vs. —

**MICHAEL HITRINOV a/k/a
MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

**APPENDIX TO REPLY TO COMPLAINANTS' MOTION TO STRIKE, PRECLUDE,
AND/OR COMPEL COMPLIANCE WITH THE PRESIDING OFFICER'S ORDERS**

APPENDIX “A”

Marcus A. Nussbaum

From: Judges <Judges@FMC.gov>
Sent: Wednesday, June 15, 2016 1:44 PM
To: marcus.nussbaum@gmail.com; Jeffrey, Eric; avohra@nixonpeabody.com
Subject: FW: Consolidated Dockets 15-11 and 1953(I)
Attachments: Respondents' Response to Complainants' Motion to Dismiss.pdf

Good Afternoon, this is in response to the Complainants' Motion to Dismiss and whether the Respondents' response was supposed to be directed to some other document, because we did not receive the Complainants' Motion to Dismiss.

From: Vohra, Anjali [mailto:avohra@nixonpeabody.com]
Sent: Tuesday, June 14, 2016 6:11 PM
To: Secretary <secretary@FMC.gov>
Cc: Judges <Judges@FMC.gov>; Jeffrey, Eric <ejeffrey@nixonpeabody.com>; marcus.nussbaum@gmail.com
Subject: Consolidated Dockets 15-11 and 1953(I)

Dear Ms. Gregory,

Enclosed for filing is Respondent's Response to Complainants' Motion to Dismiss. The original and five (5) copies identical to the attached will follow by mail.

A courtesy copy to the Presiding Officer and electronic copy to Counsel for the Complainants is included herewith.

If you have any questions, please do not hesitate to contact me.

Best regards,

Anjali



Anjali Vohra

Associate

avohra@nixonpeabody.com

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APPENDIX “B”

Marcus A. Nussbaum

From: Jeffrey, Eric <ejeffrey@nixonpeabody.com>
Sent: Wednesday, June 15, 2016 3:40 PM
To: Marcus Nussbaum
Cc: Judges; Vohra, Anjali
Subject: Re: Consolidated Dockets 15-11 and 1953(l)

Dear Ms. Hutchins

The response is properly designated as a response to the motion to compel, as Mr. Nussbaum knows full well. A typo in the cover email is obviously irrelevant. It was filed within 7 days both electronically and the original by mail. So it is fine either way.

I also note that Counsel for Complainants is again making motions by email, even though directly prohibited by the Initial Order and the Presiding Officer's prior rejection of such motions by Complainant.

Best regards.

Eric

Sent from my iPhone

On Jun 15, 2016, at 2:50 PM, Marcus Nussbaum <marcus.nussbaum@gmail.com> wrote:

Dear Ms. Hutchins,

I represent the Complainants in this matter and I am in receipt of your email of this date.

Please be advised that at no time have Complainants filed a Motion to Dismiss. Complainants have, however, interposed a Motion to Strike, to Preclude, and to Compel Respondents' compliance with the Presiding Officer's Orders.

To the extent that Respondents have interposed an opposition to a Motion to Dismiss, since no such motion was made, we ask that those papers be rejected.

Additionally, we note that pursuant to Rule 71 of the Commission's Rules of Practice and Procedure, Respondents have had seven days to oppose Complainants' motion, which have now passed. As such, we respectfully request that the Respondents now be precluded from interposing opposition to Complainants' motion, and that the motion be granted on default.

Respectfully submitted,

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
<http://www.nussbaumlawfirm.com/>

APPENDIX “C”

Marcus A. Nussbaum

From: Jeffrey, Eric <ejeffrey@nixonpeabody.com>
Sent: Wednesday, June 15, 2016 5:16 PM
To: Marcus Nussbaum
Cc: Judges; Vohra, Anjali
Subject: Re: Consolidated Dockets 15-11 and 1953(l)

Dear Ms. Hutchins

This was apparently a clerical error made by a secretary. Please read the conclusion, which refers to the motion to compel. And Mr. Nussbaum is again violating the rules.

Sent from my iPhone

On Jun 15, 2016, at 4:27 PM, Marcus Nussbaum <marcus.nussbaum@gmail.com> wrote:

Dear Ms. Hutchins,

I am in receipt of counsel's email below which was directed to your attention.

As counsel well knows, the representations made by him are patently false. The brief filed by counsel states that it is a "Response to Complainants' Motion to Dismiss". This is stated not only in the email and cover letter, but in the body of the brief itself.

Even if counsel has confused this proceeding with another matter, it is of no consequence. This is a fatal procedural defect, and Respondents' brief should be rejected. Since the beginning of this litigation, counsel has had a history of making late submissions and filing supplemental responses without leave of the Commission.

In light of this, Respondents should not be given leave to serve an additional late and supplemental response, and Complainants respectfully request that the Presiding Officer put an end to this method of practice by Respondents.

Respectfully submitted,

Regards,

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
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APPENDIX “D”

Marcus A. Nussbaum

From: Marcus Nussbaum <marcus.nussbaum@gmail.com>
Sent: Friday, May 27, 2016 5:47 PM
To: Jeffrey, Eric
Subject: FMC Dockets No. 15-11 & 1953(I) (Consolidated)
Attachments: Notice of Deposition.pdf

Dear Counsel,

Kindly allow this email to respond to yours of May 25, 2016 in the above referenced matter.

In the first instance, please be advised that all discovery demands must be made formally, as opposed to informal emails and first name salutations.

Second, and as to the material you are apparently requesting, you are hereby advised that upon receipt of any formal demand, such discovery will be denied as being violative of the attorney-client privilege and as constituting attorney work product and material otherwise prepared in anticipation of litigation.

Attached herein, please find a Notice to Take Deposition of all respondents by Michael Hitrinov. Kindly contact the undersigned should you have any question regarding the date, time, or location of said deposition.

As of the time of this writing, Complainants have still not yet received documents responsive to the Commission's Order of April 27, 2016. Such outstanding document production includes the following: freight rates for transportation of the subject vehicles; shipping agreements relating to transport of the subject vehicles; booking confirmations regarding space on ocean liners that transported the subject vehicles; import declarations and other customs documentation regarding the subject vehicles; Notices of Arrival confirming arrival of the subject vehicles at the port of destination; validated Certificates of Title for the subject vehicles; "...and any other documents relating to the shipment of the vehicles."

Kindly advise as to a date certain that you will be available to "meet and confer" regarding the above in accordance with the Commission's Rules of Practice and Procedure, and the attached. To that end, we suggest a telephonic conference on a date and time to be agreed upon and as may be convenient to the parties. Kindly consider the foregoing a 'good faith' effort to address, discuss, and set timelines for all remaining and further discovery in this matter, absent the need to unnecessarily seek the Commission's intervention.

Very truly yours,

Marcus A. Nussbaum, Esq.
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